

**CHAPTER xiv.**

An Act to amend the Acts relating to the Milford Docks Company to extend the time limited for the completion of a certain work to enable the Company to acquire lands compulsorily and for other purposes.

A.D. 1906.

[29th May 1906.]

WHEREAS by the Milford Docks Act 1874 the Milford Docks Company (in this Act called "the Company") were incorporated and by that Act and the Milford Docks Act 1875 were empowered to make the docks and works therein respectively described :

And whereas various Acts have from time to time been passed relating to the Company and their affairs :

And whereas by the Milford Docks Act 1892 (hereinafter called "the Act of 1892") as amended by the Milford Docks Act 1894 (hereinafter called "the Act of 1894") and the Milford Docks Act 1900 (hereinafter called "the Act of 1900") provision is made for the payment of interest on the debenture stock A and the debenture stock B of the Company during the period between the thirtieth day of June one thousand eight hundred and ninety-one and the thirtieth day of June one thousand nine hundred and seven out of the profits only of the Company in any half year :

And whereas it is expedient that provision be made as hereinafter contained for the extension of the period during which interest on the debenture stock A and the debenture stock B is to be payable out of the profits only of the Company :

And whereas the holders of three-fourths and upwards in value of debenture stock A and of debenture stock B respectively have consented in writing to the provisions contained in this Act :

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And whereas by the Milford Docks Act 1890 (hereinafter called "the Act of 1890") the Company were authorised to construct the pier therein more specifically described and the period for the completion of the said pier was limited to five years from the passing of that Act which received the Royal Assent on the fourth day of July one thousand eight hundred and ninety and by the Act of 1894 the Milford Docks Act 1898 (hereinafter called "the Act of 1898") and the Milford Docks Act 1901 (hereinafter called "the Act of 1901") such period was extended until the fourth day of July one thousand nine hundred and six and it is expedient that such period be further extended as hereinafter provided :

And whereas it is expedient that the Company be authorised to purchase the lands hereinafter mentioned and that they and the Milford Haven Dock and Railway Company be authorised to enter into and carry into effect agreements as hereinafter provided :

And whereas plans of the lands intended to be acquired compulsorily under the powers of this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands have been deposited with the clerk of the peace for the county of Pembroke and are in this Act referred to as "the deposited plans and book of reference" respectively :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Milford Docks Act 1906.

Incorporation of Acts.

2. The following Acts and part of an Act are so far as applicable to and except where expressly varied by or inconsistent with this Act incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts ; and

Part II. (relating to extension of time) of the Railways Clauses Act 1863 and in construing the provisions of the said Part II. for the purposes of this Act the pier authorised by the Act of 1890 shall be deemed to be a railway and the Company shall be deemed to be a railway company.

3. In this Act the several expressions and words to which meanings are assigned by the Act of 1892 and the Acts wholly or partially incorporated with that Act and this Act respectively have the same respective meanings unless there be something in the subject or context repugnant to such construction and the expression "the railway company" means the Milford Haven Dock and Railway Company.

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Interpreta-
tion.

4. Proceedings for the recovery of any demand made under the authority of this Act or the former Acts or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

5.—(1) Subsections (2) and (3) of section 4 and section 5 of the Act of 1900 shall be read and have effect as if the words "one thousand nine hundred and fourteen" had been inserted therein instead of the words "one thousand nine hundred and seven" wherever those last-named words occur in such subsections and section respectively and the Act of 1892 shall be and is hereby amended accordingly.

Extending
period for
payment of
interest on
debenture
stock out of
profits only.

(2) Subsection (4) of section 4 of the Act of 1900 is hereby repealed and the Company shall call in and endorse the existing certificates of debenture stock A and debenture stock B and shall endorse all certificates of debenture stock A which may be issued after the passing of this Act and prior to the thirtieth day of June one thousand nine hundred and fourteen with notice of the provisions of section 7 of the Act of 1892 as amended by the Act of 1900 and this Act and no holder of any such debenture stock issued at the date of the passing of this Act shall be entitled to the payment of any proportion of the profits of the Company ascertained as provided by the Act of 1892 as amended by this Act in respect of interest on such debenture stock held by him until he shall have delivered up to the Company to be endorsed all certificates of such debenture stock held by him.

(3)—(A) The directors may at any time not less than six months prior to the thirtieth day of June one thousand nine hundred and fourteen or to such subsequent date as may in accordance with the provisions of this subsection be for the time being fixed for the expiration of the period during which interest on debenture stock A and debenture stock B is to be

A.D. 1906. charged upon and payable out of the profits only of the Company with the approval of three-fourths in value of (I) the holders of debenture stock A and (II) the holders of debenture stock B present personally or by proxy at a special meeting of the holders of such stocks respectively expressly called for the purpose further extend the period during which interest on such debenture stocks is to be charged upon and paid out of the profits only of the Company for such time or times as they think fit ;

(B) In the event of such extension the date fixed for the expiration of the extended period shall be deemed to be substituted for the words "one thousand nine hundred and fourteen" in subsection (1) of this section and the provisions of subsection (2) of this section shall apply to and in the case of such further extension with the substitution of (1) the date of the expiration of the period proposed to be further extended for the passing of this Act and (2) the expiration of the extended period for the thirtieth day of June one thousand nine hundred and fourteen ;

(c) Such meetings of holders of debenture stock A and debenture stock B shall be convened in manner prescribed by the Companies Clauses Consolidation Act 1845 for the holding of extraordinary general meetings of shareholders and at any such meeting any holder of debenture stock A or debenture stock B as the case may be may vote in person or by proxy and the provisions of sections 76 and 77 of the Companies Clauses Consolidation Act 1845 with respect to the appointment of proxies by shareholders and the voting by proxy shall apply to the appointment of proxies by the holders of such debenture stocks and to the voting by such proxies ;

(D) If several persons be jointly entitled to any debenture stock A or debenture stock B as the case may be the person whose name stands first in the register of such debenture stock as one of the holders thereof shall for the purposes of voting at such meeting be deemed to be the sole proprietor thereof and at such meeting his vote whether given in person or by proxy shall be allowed as the vote in respect of such debenture stock without proof of the concurrence of the other holders thereof and all trustees executors administrators and other persons legally holding debenture stock A or debenture stock B as the case may be in any representative or fiduciary capacity are hereby expressly

authorised to vote in respect of such debenture stock at any such meeting and section 79 of the Companies Clauses Consolidation Act 1845 shall also *mutatis mutandis* apply to and in the case of the holders of such debenture stocks; and A.D. 1906.

(E) Section 80 of the Companies Clauses Consolidation Act 1845 shall *mutatis mutandis* apply to the proof of the approval by the necessary majority of the holders of debenture stock A and debenture stock B respectively of any resolution proposed at any meeting of the holders of such respective debenture stocks.

6. The period limited for the completion of the pier authorised by the Act of 1890 as extended by the Act of 1894 the Act of 1898 and the Act of 1901 is hereby further extended for a period of five years from the fourth day of July one thousand nine hundred and six and the Act of 1890 shall be read and have effect as if such extended time had been originally named therein as the period limited for the completion of the pier thereby authorised. Extension of time for completion of pier.

7. Subject to the provisions of this Act the Company may for the general purposes of their undertaking enter upon take and use the lands shown upon the deposited plans and described in the deposited book of reference in the parish of Milford in the county of Pembroke adjoining and on the south side of the railway of the railway company and lying between that railway and the Trawl Market of the Company and the works connected therewith. Power to take additional lands.

8. The powers of the Company for the compulsory purchase of the lands which they are by this Act authorised to acquire shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

9. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

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Correction of
errors &c. in
deposited
plans and
book of refer-
ence.

10. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Pembroke for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Pembroke and a duplicate thereof shall also be deposited with the clerk to the district council of the urban district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands in accordance with such certificate.

Agreements
with railway
company.

11. The Company on the one hand and the railway company on the other hand may enter into and carry into effect agreements with respect to the exchange of any lands belonging to them respectively and the rearrangement alteration and deviation of any lines of rails sidings or other works of the Company or the railway company on or in the vicinity of the lands which the Company are by this Act authorised to acquire.

Extension of
section 11 of
Act of 1892
and section
13 of Act of
1894.

12. The moneys to arise from the creation and issue of Milford Docks special charge debenture stock or the granting of Milford Docks special mortgages as the case may be shall (except in the case of special charge debenture stock or special mortgages issued or granted for the purposes of redeeming special charge debenture stock or paying off special mortgages which shall be applied to those purposes respectively) be applied in or towards the payment of the costs and expenses of and incident to the preparation of applying for and obtaining and passing of this Act and to the payment of the cost of the acquisition of the lands which the Company are by this Act authorised to acquire and of carrying into effect any agreement which may be

[6 Edw. 7.]

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made with the railway company as hereinbefore provided in A.D. 1906.
addition to the other purposes mentioned in section 11 of the
Act of 1892.

13. All costs charges and expenses of and incident to the Costs of Act.
preparing applying for obtaining and passing of this Act or
otherwise in relation thereto shall be paid by the Company.

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